

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUNP049300: LISA CHINI, et al. vs VISTA CAMARILLO OWNERS
ASSOCIATION, AN INCORPORATED ASSOCIATION, et al.
09/23/2026 in Department 40
Special Motion to Strike the Cross Complaint (Anti-SLAPP Motion)**

Ray Chini, et al. vs. Vista Camarillo Owners Association, et al.

2025CUNP049300

September 23, 2026 at 8:20 a.m.

Honorable Dennis Hayashi, Dept. 40

Motion: Cross-Defendant Ray Chini's Special Motion to Strike Cross-Complaint pursuant to Code of Civil Procedure section 425.16 (*Opposed*)

The Court intends to rule as follows:

Cross-Defendant filed his reply on Friday evening, September 18, 2026. The reply was due September 16, 2026, five court days before the September 23 hearing. (Code Civ. Proc., § 1005, subd. (b).) No explanation or showing of good cause for the late filing has been provided. The Court therefore exercises its discretion under California Rules of Court, rule 3.1300(d), and declines to consider the untimely reply.

Cross-Defendant Ray Chini's Special Motion to Strike pursuant to Code of Civil Procedure section 425.16 is GRANTED in part and DENIED in part.

Code of Civil Procedure section 425.16 requires a two-step analysis. The moving party must first show that the challenged claim arises from protected activity; if that showing is made, the burden shifts to the opposing party to demonstrate that the claim has at least minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009-1011.)

At the first step of the anti-SLAPP analysis, the Court finds that Cross-Defendant has demonstrated that certain claims for relief in the Cross-Complaint arise from protected activity.

Vista Camarillo Owners Association is a private homeowners association, not a governmental entity. This fact does not preclude application of Code of Civil Procedure section 425.16. Subdivision (e)(3) protects statements made in a public forum in connection with an issue of public interest, and subdivision (e)(4) protects other speech or conduct in furtherance of free-speech rights concerning a public issue or an issue of public interest. California courts have applied these provisions to communications concerning the governance and management of homeowners associations where the communications are made at Association meetings, disseminated to the membership, or form part of an ongoing controversy affecting the Association community. (*Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475, 479-480; *Ruiz v. Harbor View Community Assn.* (2005) 134 Cal.App.4th 1456, 1467-1469;

**2025CUNP049300: LISA CHINI, et al. vs VISTA CAMARILLO OWNERS
ASSOCIATION, AN INCORPORATED ASSOCIATION, et al.**

Colyear v. Rolling Hills Community Assn. of Rancho Palos Verdes (2017) 9 Cal.App.5th 119, 130-132.)

Here, the Cross-Complaint itself alleges as wrongful conduct Chini's communications to Association members and his statements at Association meetings concerning matters including Board governance and legitimacy, recall elections, Association finances and dues, management companies, expenditures, contracts, vendors, and related Association affairs. (Cross-Complaint, ¶¶ 9, 12-13.) These subjects formed part of an ongoing controversy concerning the governance and operation of the Association and potentially affected the membership as a whole. To the extent the claims seek relief based upon those communications themselves, Cross-Defendant has satisfied the first prong of section 425.16.

The Court does not find, however, that every act alleged in the Cross-Complaint constitutes protected activity. The allegation of a physical confrontation at the community pool, alleged threats or physical intimidation, and other independently actionable noncommunicative misconduct are not transformed into protected activity merely because they occurred in the context of an HOA dispute. Likewise, not every communication concerning an HOA is protected simply because its subject can generally be characterized as "HOA governance." (*Turner v. Vista Pointe Ridge Homeowners Assn.* (2009) 180 Cal.App.4th 676, 679, 687; *Talega Maintenance Corp. v. Standard Pacific Corp.* (2014) 225 Cal.App.4th 722, 733.)

Accordingly, the Court proceeds to the second step only as to the claims for relief arising from the protected communications identified above.

As to the first cause of action for public nuisance, the motion is DENIED. Although Cross-Defendant establishes that portions of the claim arise from protected speech, Cross-Complainant has presented sufficient evidence at this stage to make the minimal prima facie showing required under the second step of section 425.16. The Court makes no determination concerning the ultimate merits of that claim.

As to the second cause of action for harassment under Code of Civil Procedure section 527.6, the motion is GRANTED in part. Cross-Complainant has not demonstrated minimal merit to the extent that the claim seeks relief based upon Chini's protected communications concerning Association governance, elections, finances, management, contracts, expenditures, and related matters. Constitutionally protected activity is excluded from the statutory "course of conduct" under section 527.6. Further, the Association itself is a corporate entity rather than the natural person allegedly suffering emotional distress, and section 527.6 provides an expedited remedy for injunctive relief rather than the compensatory and special damages requested in the Cross-Complaint.

The motion is DENIED to the extent the harassment claim rests upon alleged unprotected conduct, including alleged violence, threats of violence, physical confrontation, or other nonprotected acts. The Court does not determine in this proceeding whether those remaining allegations otherwise state a legally sufficient claim under section 527.6. The denial is based solely upon Cross-Defendant's failure to establish at step one that such conduct falls within Code of Civil Procedure section 425.16.

**2025CUNP049300: LISA CHINI, et al. vs VISTA CAMARILLO OWNERS
ASSOCIATION, AN INCORPORATED ASSOCIATION, et al.**

Cross-Complainant's Request for Judicial Notice of Exhibits A through E is GRANTED as to the existence and contents of the court records, but not for the truth of disputed factual assertions contained therein.

The Court does not rely upon the portions of the Chini and Camacho declarations challenged by Cross-Complainant's evidentiary objections in reaching its ruling. The Court therefore need not rule individually upon those objections.

No attorney-fee amount is awarded on the present record. Cross-Defendant may seek fees and costs, if appropriate, by separately noticed motion addressing prevailing-party status, the extent of his success on the special motion, and the amount reasonably attributable to the successful portion of the motion.

Cross-Defendant Ray Chini to give notice.